

PUC official: Railroad should not prevent public crossing of Baden bridge

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Nov. 14--BADEN -- A state official advised Norfolk Southern Corp. on Thursday that railroad police and workers should avoid confronting people using a bridge to access the Ohio River shoreline.

Public Utility Commission staffer Dan Helfrich said the public appeared to have access on the Pinney Street bridge, which crosses over railroad tracks, and he suggested that those who park on a road west of the railroad tracks are on Baden borough property.

"I consider this a public bridge," said Ron Hull, PUC senior civil engineer for railroads, adding that the road he and others were standing on was a public roadway. The road extends from the bridge and is located between the Ohio River and Route 65.

The comments came during a meeting that involved residents, borough and railroad representatives, and state officials. Baden resident John Shelkons said railroad workers have threatened to arrest people who walk across the bridge and have cited vehicles that park near the shoreline.

"They've been telling people, 'You're not allowed on the bridge,'" said Shelkons, who has routinely used the shoreline to fish.

Shelkons had filed a complaint with the PUC, and the parties met Thursday to try to resolve issues.

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Lock design for the
Upper Miss & Illinois
Rivers needs funding!
The Navigation-
Ecosystem
Sustainability Program
(NESP) should be
included in FY16 for
engineering & design.
Contact the
Appropriators!

The bridge was built by the railroad, which still maintains it, said Ben Dunlap, an attorney representing Norfolk Southern. But he suggested the borough owns the structure. A solicitor representing the borough, Bill Rodgers, said the borough appears to own it, but that's not definitive.

PUC officials said that based on a map of a property deed that Shelkons showed at the meeting, there was public access for the bridge.

In 1956, the PUC determined that a private road constructed by Pennsylvania Railroad Co. west of Pinney Street, as well as the bridge carrying it over the grade of its tracks, was dedicated for public use.

Borough and Norfolk Southern attorneys suggested they will work out an agreement, and Norfolk Southern engineer D. Shawn Starling also suggested that signs could be placed on the west side of a road near the water designating the borough's property.

State officials also recommended having the borough and railroad resolve the issue, rather than having the state issue another order.

Dunlap also said the railroad would need to review the issue, adding it could petition the PUC to change a previous order based on current circumstances.

Helfrich also said snow and ice removal is the borough's responsibility, and the railroad is supposed to maintain the bridge structure.

